

Procedure section 1283.4, to ensure that the arbitrator's "award" is an "award" within the meaning of that statute. *Cinel v. Christopher* (2012) 203 Cal.App.4th 759, 767; see CJER Civ. Pro.—Before Trial, § 3.94; see also Code Civ. Proc. § 1283.4 ("The award shall be in writing and signed by the arbitrators concurring therein. It shall include a determination of all the questions submitted to the arbitrators the decision of which is necessary in order to determine the controversy.").

A Proof of Service of the Petition to Confirm on Mr. Clute was filed October 15, 2025 and notice of the hearing date on the Petition to Confirm was also given. See Notice of Hearing filed October 24, 2025.

Mr. Clute has not filed a response or otherwise sought to correct or vacate the Arbitration Award.

The Court finds that the Arbitration Award was duly made in writing by the Arbitrator and constitutes a determination of all the questions submitted to the Arbitrator, the decision of which was necessary in order to determine the controversy. Accordingly, the Court confirms the Arbitration Award made.

Disposition

The Court finds and orders as follows:

1. The Petition to Confirm is GRANTED and the Arbitration Award is CONFIRMED.
2. Round Hill to submit proposed forms of order and judgment.

Discovery Law & Motion

16. 9:01 AM CASE NUMBER: C22-02774

CASE NAME: JANE DOE A.M.M. VS. WEST CONTRA COSTA UNIFIED SCHOOL DISTRICT

***HEARING ON MOTION FOR DISCOVERY ORDER TO COMPEL CTC'S COMPLIANCE WITH SUBPOENA FOR PRODUCTION OF RECORDS**

FILED BY: DOE A.M.M., JANE

TENTATIVE RULING:

Plaintiff Jane Doe A.M.M. ("Plaintiff") filed a Motion for Order to Compel CTC's Compliance with Subpoena for Production of Records ("Motion to Compel Compliance with Subpoena") on December 4, 2025. The matter was set for hearing on June 29, 2026. By its Order entered January 9, 2026, the Court advanced the hearing date to March 9, 2026. The motion is opposed.

Background

This case stems from allegations that defendant West Contra Costa Unified School District (the "District") is liable, under various theories, for the childhood sexual assault on Plaintiff perpetrated by "a counselor, employee, and agent" of the District (the "Perpetrator").

After an initial effort to secure documents through an informal request and meet and confer process, Plaintiff served third party California Commission on Teacher Credentialing ("CTC") with a subpoena seeking documents relating to the Perpetrator. See Declaration of Amanda J.G. Walbrun ("Walbrun Decl."), ¶¶13-17 and **Exhibit 6** thereto (the "Subpoena").

CTC responded "by producing forty-three (43) pages of significantly redacted documents. *Id.* at ¶¶20-22

and **Exhibits 8-10** thereto. The documents produced were accompanied by a set of objections. *Id.* at **Exhibit 8**.

The parties meet and conferred regarding the scope of production and the asserted objections. *Id.* at ¶24-27.

Opposition papers, including declarations were filed by CTC on February 24, 2026.

A reply was filed March 2, 2026.

Analysis

If a deponent fails to produce any document, electronically stored information, or tangible thing under the deponent's control that is specified in a deposition subpoena, the party seeking discovery may move the court for an order compelling that production. Code Civ. Proc. § 2025.480; see CJER, *California Judges Benchbook: Civil Proceedings—Discovery* (2025) ("CJER Civ. Pro.—Discovery"), § 1.89.

CTC has raised a number of issues regarding the scope of the Subpoena and the nature of the records sought. Each of those issues is addressed in turn below.

Scope of Records Sought

CTC contends Plaintiff "has failed to adequately explain how any of the categories of documents requested are relevant to the litigation at hand or will lead to the discovery of admissible evidence." See Opposition, p. 3.

CTC's arguments are misguided. Plaintiff need not demonstrate that CTC conducted an investigation into the Perpetrator's conduct or that CTC took disciplinary action.

Civil discovery in California is governed by the Civil Discovery Act. See Code Civ. Proc. §§ 2016.010–2036.050. The Civil Discovery Act provides litigants with the right to broad discovery. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 402. In general, any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.010; see *Sinaiko Healthcare Consulting, Inc.*, *supra*, 148 Cal.App.4th at 402.

Investigation into a teacher's or counselor's credentialing history and file in light of the allegations here is most certainly reasonably calculated to lead to the discovery of admissible evidence. Besides the obvious relevance of any history of disciplinary action(s), even apparently mundane circumstances such as the training and background of the person or gaps in maintaining a credential could well be relevant to the issue of wrongdoing by the teacher or counselor. No persuasive showing has been made by CTC that the scope of the production would somehow be unduly burdensome because of the cost or administrative burden of gathering and producing the documents. The Court finds good cause for the production of the subpoenaed records, subject to the further discussion below.

CTC's Objection Nos. 5 and 6 that the Subpoena is overbroad, unduly burdensome, and/or seeks documents that are not relevant or reasonably calculated to lead to the discovery of admissible evidence are **OVERRULED**.

Seeking Records Not Prepared by CTC or Are Asserted to be Equally Available

The Court has considered and rejects CTC's contention that it need not produce records that were not

prepared by CTC employees. The Court has also considered and rejects the contention that the subpoenaing party may be able to obtain the documents through other means. All records in CTC's custody, possession or control are subject to production, regardless of whether it prepared them or not. The showing by CTC fails to establish that the documents are equally available through other means and even if they were, good cause has been demonstrated for their production directly from CTC's files.

CTC's Objection No. 2 that the Subpoena seeks records that are not business records of the CTC and are equally available or in the possession of the subpoenaing party is **OVERRULED**.

Privacy and Other Privileges

CTC objects to the Subpoena to the extent that it seeks disclosure of private information subject to the Information Practices Act ("IPA") and other state law. See Civ. Code § 1798 *et seq.*; see also Ed. Code § 44230. CTC observes that it was not able to disclose records—or at least certain portions of records—containing protected private information given the strictures of the Education Code and the interplay with the IPA. CTC also raises concerns about other privileges, including attorney-client privilege and the official records privilege.

Nothing in these statutes preclude disclosure of subpoenaed records pursuant to a court order. Indeed, the IPA expressly provides for it, as CTC acknowledges. See Civ. Code § 1798.24 ("An agency shall not disclose any personal information in a manner that would link the information disclosed to the individual to whom it pertains unless the information is disclosed, as follows: [¶] (k) To any person pursuant to a subpoena, court order, or other compulsory legal process if, before the disclosure, the agency reasonably attempts to notify the individual to whom the record pertains, and if the notification is not prohibited by law."); see also Ed. Code § 44230(a)(2) ("...no information, other than that set forth in paragraph (1), may be disclosed by the commission absent an order from a court of competent jurisdiction.")

CTC has not shown that plaintiff unreasonably failed to attempt to notify the individual to whom the record pertains in as much as it is undisputed that the Perpetrator is deceased.

While CTC may have had substantial justification in withholding records with information subject to these statutory protections absent a court order, the Court concludes that their production is necessary and appropriate having considered the totality of the circumstances and all of the objections raised by CTC. The Court has weighed the need for the production of the evidence versus the privacy considerations at issue, assuming they survived the alleged Perpetrator's passing.

The Court orders the parties to meet and confer regarding a form of Protective Order to protect against the dissemination of any sensitive private information, including any "personal information" as defined by Civil Code 1798.3, beyond the parties and other appropriate persons in connection with litigation of this matter and encompassing such other protections/limitations as the parties may deem necessary and appropriate to safeguard such information.

The Court denies the motion as relates to the internal communications between CTC staff and CTC legal counsel relating to responding to the original request for records and the Subpoena and sustains the attorney-client and official information privileges with respect to such records. See Opposition, p. 8 ("The documents withheld by CTC on this basis are e-mails from CTC support staff to CTC legal staff regarding the pending Subpoena and Plaintiff's previous requests for information regarding Banducci."); see also Privilege Log produced by CTC. CTC has not shown that any other particular records are properly withheld under any other privilege, including the official information privilege.

CTC's Objection Nos. 1, 3 and 4 that the Subpoena seeks privileged and/or private information are OVERRULED in PART and SUSTAINED in PART, as forth above.

Disposition

The Court finds and orders as follows:

1. The Motion to Compel Compliance with Subpoena is GRANTED IN PART and DENIED IN PART, as set forth further above.
2. The parties shall submit for approval the Protective Order referenced above within thirty (30) days of notice of entry of this order.
3. CTC shall make a further response with any and all responsive records in its custody, control or possession, unredacted and subject to the Protective Order, no later than sixty (60) days after notice of entry of this order or thirty (30) days after entry of the final approved Protective Order, whichever is later.
4. The Court shall issue the order after hearing.

Courtroom Clerk's session

17. 10:00 AM CASE NUMBER: MSC20-02384
CASE NAME: WEST CREEK VS PROFRAME
DEFAULT HEARING IN RE: JUDGMENT (CONVERTED FROM TRIAL TO A PROVE-UP HRG PER ORDER FILED 2/19/2026)
FILED BY:
TENTATIVE RULING:

Parties to Appear.

Courtroom Clerk's session
Add On

18. 9:00 AM CASE NUMBER: MSC21-01664
CASE NAME: DUGGAN VS. BDM ASSOCIATION
***HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL RE: NICHOLAS J. CAPLIN**
FILED BY: DUGGAN, MOLLY
TENTATIVE RULING:

Nicholas J. Caplin and the other attorneys of Lubin Pham + Caplin LLP ("Counsel") filed a series of Motions to be Relieved as Counsel on November 7, 2025 (the "Motions to be Relieved as Counsel"). The